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Santiago v. FCA US

LLC

25STCV19347

Demurrer to First Amended Complaint

Motion to Strike

Tentative Ruling

The demurrer is overruled.

The motion to strike is denied.

Background

This case arises out of the purchase of a 2019 Chrysler Pacifica (the "Vehicle") by Plaintiff Miguel Santiago ("Plaintiff") or on about January 17, 2019.

On June 30, 2025, Plaintiff filed the complaint in this action against FCA US LLC; Imperial Valley Chrysler Dodge Jeep Ram; and Does 1 through 10.

After a demurrer was filed, Plaintiff filed a First Amended Complaint (the "FAC") on December 29, 2025, against the same defendants. In the FAC,

Plaintiff asserts causes of action for: (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of the implied warranty of merchantability (Civil Code sections 1791.1, 1794, and 1795.5); (5) negligent repair; and (6) fraudulent inducement – concealment.

On February 27, 2026, Defendants FCA US, LLC and Imperial Valley Chrysler Dodge Jeep Ram (“Defendants”) filed this demurrer and motion to strike.

Plaintiff filed oppositions on April 21, and Defendants filed replies on April 27.

The hearing on the demurrer and motion to strike was initially set for May 4. The hearing was continued three times, twice because of the Court's determination that there was not evidence before the Court that counsel had met and conferred, and the third time because of the Court's schedule.

Trial is set for July 19, 2027.

Legal Standard

Demurrer

Code of Civil Procedure section 430.10 provides:

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

...

(e) The pleading does not state facts sufficient to constitute a cause of action.

(f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible. ...”

A general demurrer under Code of Civil

Procedure section 430.10, subdivision (e), tests whether the complaint states a cause of action. (*Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388; *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; see also 1 Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* [2025], ¶ 7:40.)

“We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. We also consider matters which may be judicially noticed.” (*Centinela Freeman Emergency Medical Associates v. Health Net of California* (2016) 1 Cal.5th 994, 1010; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; accord *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924; *Marina Pacific Hotel and Suites v. Fireman's Fund Insurance Company* (2022) 81 Cal.App.5th 96, 104.) All reasonable inferences must be drawn in favor of the pleading. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Marina Pacific Hotel and Suites*, *supra*, 81 Cal.App.5th at p. 104.) Even “improbable” facts alleged in the pleading must be accepted as true. (*Marina Pacific Hotel and Suites*, *supra*, 81 Cal.App.5th at pp. 104-105.)

Courts must “liberally construe the pleading” and “give the complaint a reasonable interpretation, reading it as a whole and its parts in context.” (*Id.* at p. 105.)

A complaint must contain a “statement of facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a)(1); see also *C.A. v. William S. Hart High School Dist.* (2012) 53 Cal.4th 861, 872 [“the complaint need only allege facts sufficient to state a cause of action”].) Ordinarily, a complaint “is sufficient if it alleges ultimate rather than evidentiary facts.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Ultimate facts are those upon which “the right to recover depends” and are “essential” to the cause of action. (*Estes v. Eaton Corp.* (2020) 51 Cal.App.5th 636, 643 fn. 2; see also 1 Weil & Brown, *supra*, ¶ 6:124.)

A plaintiff is required to plead only “the essential facts of [its] case” that are sufficient “to acquaint a defendant

with the nature, source and extent of [the] cause of action.” (Doe, supra, 42 Cal.4th at p. 550.) Mere boilerplate or pleading of legal conclusions is not sufficient. (Id. at p. 551 fn. 5.) But a plaintiff need not allege “each evidentiary fact that might eventually form part of plaintiff’s proof” at trial. (C.A., supra, 53 Cal.4th at p. 872.)

A demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f), is “disfavored” and will be sustained “only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors (2019) 38 Cal.App.5th 677, 695; accord Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn. 3.) A complaint need not be “a model of clarity” and must only contain sufficient allegations to put the defendants on notice of the claims against them. (A.J. Fistes Corp., supra, 38 Cal.App.5th at p. 695.) As the Court of Appeal has observed, “where a complaint is in some respects uncertain, ... ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616; see also 1 Weil & Brown, supra, ¶¶ 7:85-7:86.)

A demurrer can be sustained only when it disposes of an entire cause of action. (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend should be granted when “there is a reasonable possibility that the defect can be cured by amendment.” (Centinela Freeman, supra, 1 Cal.5th at p. 1010; Blank, supra, 39 Cal.3d at p. 318; Shaeffer v. Califia Farms (2020) 44 Cal.App.5th 1125, 1145.)

Motion to Strike

Under Code of Civil Procedure section 435, “Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.” (Code Civ. Proc., § 435, subd. (b)(1).)

Code

of Civil Procedure section 436 provides:

“The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a)

Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b)

Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

(Code

Civ. Proc., § 436.) In ruling on a motion to strike, the court must assume the truth of the properly pleaded facts in the complaint or other pleading. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63.)

Meet and Confer Requirement

Before

filing a demurrer or motion to strike, the parties must “meet and confer in person, by telephone, or by video conference.”

(Code Civ. Proc., § 430.41, subd. (a) & § 435.5, subd. (a).) This requirement has now been satisfied. (Supp. Lopez Decl., ¶¶ 5, 9.)

Request

for Judicial Notice

Defendants ask the Court to take judicial notice of three legislative history documents and one document from the website of the California Department of Consumer Affairs. The requests are granted.

Discussion

Demurrer

Defendants demur each cause of action in the FAC.

As a threshold matter, the memorandum of points and authorities in support of the demurrer exceeds the permissible page length. Defendants did not seek or obtain an order to file an overly long brief.

The Court disregards all arguments after the 15th page of the memorandum. (As the first page of the memorandum is numbered page 4, the Court disregards all arguments after the end of the page numbered 18.)

The Court now turns to Defendants' arguments.

First, Second, Third, and Fourth Causes of Action (Violations of the Song-Beverly Consumer Warranty Act)

Defendants argue that the first four causes of action in the FAC are all barred by the statute of repose in AB 1755, enacted in 2024, effective on January 1, 2025, and codified at Code of Civil Procedure section 871.21. (Mem., at pp. 6-13.) In the alternative, Defendants argue that the causes of action are barred by the statute of limitations. (Mem., at pp. 13-14.)

Beginning with the statute of repose, Code of Civil Procedure section 871.21, subdivision (b) provides that certain actions under the Song-Beverly Consumer Warranty Act "shall not be brought later than six years after the date of original delivery of the motor vehicle." Subdivision (c) provides that the six-year period "shall be tolled" under the three circumstances:

"(1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable [relating to qualified third-party dispute resolution processes].

(2) For the time the motor vehicle is out of service by reason of repair for any nonconformity.

(3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days."

(Code Civ. Proc., § 871.21, subd. (c).)

Here, Plaintiff alleges that he acquired the Vehicle

“[o]n or about January 17, 2019” (FAC, ¶ 7), but he did not file suit until June 30, 2025, more than six years later.

Accordingly, Defendants argue, the first four causes of action in the FAC are barred by Code of Civil Procedure section 871.21, subdivision (b). (Mem., at p. 7.)

During the height of the COVID-19 pandemic, however, the Judicial Council enacted Emergency Rule 9, which tolled all statute of limitations and repose in civil actions for a period of almost five months (April 6 through October 1, 2020).

In addition, Plaintiff alleges that the Vehicle was out of service while being repaired at an authorized repair facility for 14 days in May 2021, for one month and 10 days in February and March 2025, and for unspecified amounts of time in September 2023 and January 2024. (FAC, ¶¶ 15-18.)

The application of a statute of repose is a defensive matter. A plaintiff must include in a complaint sufficient allegations regarding each element of his causes of action but need not anticipate all possible affirmative defenses and plead facts sufficient to defeat them. Taking the allegations of the FAC as true and drawing all reasonable inferences in favor of the pleading, the Court cannot conclude at this stage of the proceedings that Plaintiff's causes of action under the Song-Beverly Consumer Warranty Act are barred as a matter of law by Code of Civil Procedure section 871.21, subdivision (b).

The Court need not reach, and does not reach, Plaintiff's other arguments on this issue.

The first four causes of action are not barred by the statute of repose.

Next, Defendants also argue that Plaintiff's first four causes of action are barred by the statute of limitations. Defendants recognize, however, that accrual of a cause of action is generally postponed until a

plaintiff discovers (or should have discovered) the cause of action. (Mem., at p. 14.) Here, Plaintiff alleges that he brought the Vehicle in for repairs at Defendants' authorized repair facilities in 2021, 2023, 2024, and February and March 2025.

(FAC, ¶¶ 15-18.) Each time,

personnel at the repair facility represented that the Vehicle had been repaired. (Ibid.) But Plaintiff continued to experience problems with the Vehicle after each repair attempt. (FAC, ¶ 19.)

Taking these facts as true, and drawing all reasonable inferences in favor of the pleading, the Court cannot conclude at the pleading stage that, as a matter of law, Plaintiff discovered his cause of action prior to March 2025.

The first

four causes of action are not barred by the statute of limitations.

The

causes of action are not uncertain.

The demurrer

to the first four causes of action in the FAC is overruled.

Fifth Cause of Action (Negligent
Repair)

The Fifth Cause of Action in the

FAC is for negligent repair. Defendants

argue that this cause of action is barred by the "Economic Loss Rule."

As our Supreme Court has

explained, the Economic Loss Rule precludes "liability in tort for economic loss caused by negligence in the performance or negotiation of a contract between the parties." (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 923; see also, e.g., Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 20; Robinson Helicopter Co. v. Dana Corp. (2004) 34 Cal.4th 979, 988.) There are, of course, a number of exceptions to this rule, including when the plaintiff alleges that tort liability arises from an intentional act or from the breach of a duty that is independent of the contract (such as in cases of alleged fraud or negligent misrepresentation). (E.g., Rattagan, supra, 17 Cal.5th at p. 38 [fraudulent concealment]; Sheen, supra, 12 Cal.5th at p. 647 [stating that negligent misrepresentation cause of action would not have been barred by Economic Loss Rule]; Robinson Helicopter, supra, 34 Cal.4th at p. 990 ["Dana's fraud is a tort independent of the

breach”].)

The Economic Loss Rule is rooted in, and most frequently arises in, cases involving the purchase of allegedly defective goods. (E.g., *Robinson Helicopter*, supra, 34 Cal.4th at pp. 988-989; *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 18-19.) In the FAC here, however, Plaintiff alleges negligence in performing services, not in delivering goods. (FAC, ¶¶ 91-94.) For decades, California has recognized that parties to a contract for the provision of services have a “common-law duty to perform with care, skill, reasonable expedience, and faithfulness” and that “a negligent failure to observe any of these conditions is a tort, as well as a breach of contract.” (*North American Chemical Co. v. Super. Ct.* (1997) 59 Cal.App.4th 764, 774 [quoting *Roscoe Moss Co. v. Jenkins* (1942) 55 Cal.App.2d 369, 376]; see also, e.g., *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1324.) “A contract to perform services gives rise to a duty of care which requires that such services be performed in a competent and reasonable manner. A negligent failure to do so may be both a breach of contract and a tort.” (*North American Chemical Co.*, supra, 59 Cal.App.4th at p. 774; but see *Wilmington Liquid Bulk Terminals, Inc. v. Somerset Marine Inc.* (1997) 53 Cal.App.4th 186, 195 [holding that an allegedly negligent failure to perform a contract for services sounds only in contract, not in negligence].)

“The same act may be both a breach of contract and a tort. Even where there is a contractual relationship between parties, a cause of action in tort may sometimes arise out of the negligent manner in which the contractual duty is performed. ... Conversely, where a contract gives rise to a duty of care, negligence as to such duty may give rise to a cause of action for breach of contract. ... When such a hybrid cause of action arises, the plaintiff may pursue both legal theories of recovery until an occasion for an election of remedies arises.”

(*Perry v. Robertson* (1988) 201 Cal.App.3d 333, 340.) Here, as stated above, Plaintiff alleges that Defendant, in performing services for Plaintiff, had a duty to use ordinary care and skill in accordance with industry standards and failed to do so. (FAC, ¶¶ 91-94.)

Moreover, the Economic Loss Rule is a defensive matter; Plaintiff does not have an obligation to plead, in his complaint, facts sufficient to defeat every defense potentially available to

Defendants. In some cases, it is not possible to determine, at the pleading stage, whether the Economic Loss Rule will bar a cause of action for negligence in its entirety. This is one of those cases. Perhaps Defendants will have the stronger side of the argument once the facts are developed. Perhaps not. But on demurrer, the Court must view the pleadings in the light most favorable to Plaintiff and draw every reasonable inference in his favor. On the FAC here, there is at least a reasonable inference that can be drawn that there are some losses that Plaintiff has (allegedly) sustained that fall outside the scope of the Economic Loss Rule.

The cause of action is not uncertain.

Accordingly, the demurrer to the Fifth Cause of Action is overruled.

Sixth Cause of Action (Fraudulent Inducement – Concealment)

The Sixth Cause of Action in the FAC is for fraudulent inducement – concealment.

“One who willfully deceives another with intent to induce him to alter his position to his injury or risk, is liable for any damage which he thereby suffers.” (Civ. Code, § 1709.)

The Civil Code recognizes four types of fraud: (1) an intentional misrepresentation; (2) a negligent misrepresentation; (3) concealment; and (4) promissory fraud. (Civ. Code, § 1710.) “California case law ... has viewed fraud by concealment on equal footing with fraud by affirmative misrepresentation.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 39.)

The elements of a cause of action for fraudulent concealment are:

“(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a

result of the concealment or suppression of the material fact.”

(Rattagan, *supra*, 17 Cal.5th at p. 40; see also *Boschma v. Home Loan Center* (2011) 198 Cal.App.4th 230, 248; *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868.)

Fraudulent concealment is actionable only when there is a duty to disclose.

“A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.”

(Rattagan, *supra*, 17 Cal.5th at pp. 40–41 [citations omitted]; see also, e.g., *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312; *SCC Acquisitions v. Central Pacific Bank* (2012) 207 Cal.App.4th 859, 860; *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336–37.)

A plaintiff must plead fraud with particularity. (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979, 993; *Lazar v. Super Ct.* (1996) 12 Cal.4th 631, 645; *Glaski v. Bank of America* (2013) 218 Cal.App.4th 1079, 1090-1092.) This rule applies to causes of action for fraudulent concealment. As our Supreme Court has explained:

“If the duty [to disclose] allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts ..., the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission.”

(Goodman v. Kennedy (1976) 18 Cal.3d 335, 347.) “[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] ... are insufficient.” (Ibid; see also Rattagan, supra, 17 Cal.5th at pp. 43–44.)

Here, Defendants argue first that Plaintiff fails to allege this cause of action with sufficient particularity.

(Mem., at p. 16.) But Plaintiff

alleges that the Vehicle was defective and that FCA has superior or exclusive knowledge of the defects based on its monitoring of complaints and pre- and post-market data from its network of dealers.

(FAC, ¶¶ 36, 39, 96-98.) Nonetheless,

FAC actively concealed the defect from Plaintiff and other customers and potential customers. (FAC, ¶¶ 38, 66,

99-100.) Plaintiff also alleges that he would

not have purchased the Vehicle defects had he known of the defects. (FAC, ¶¶ 37, 101.)

These allegations, and others in the FAC, are sufficiently particular to support Plaintiff's cause of action for fraudulent concealment.

Defendants also argue that Plaintiff does not plead in the FAC a direct relationship or transaction with FCA.

(Mem., at p. 16.) Defendant FCA argues

that absent such a direct transaction, it owed no duty of disclosure to Plaintiff, but FCA overstates, to at least some degree, the relationship required to give rise to a duty to disclose.

California law has long recognized that a seller “has a duty to disclose material facts not only to immediate purchasers but also to subsequent purchasers when the [seller] has reason to expect that the item will

be resold.” (OCM Principal Opportunities Fund v. CIBC World Markets Corp. 157 Cal.App.4th 835, 859 [sale of securities]; accord Geernaert v. Mitchell (1995) 31 Cal.App.4th 601, 605–09 [real estate]; Barnhouse v. City of Pinole (1982) 133 Cal.App.3d 171, 192–93 [real estate]; cf. Restatement (Second) of Torts, § 533 [recognizing that a fraud cause of action can be based on an indirect misrepresentation].)

A recently decided case, Bjoin v. J-M Manufacturing Co. (2025) 113 Cal.App.5th 884, is not to the contrary. In Bjoin, our Court of Appeal reaffirmed and applied the general rule that there is no duty to disclose between a defendant and “the public at large.” (113 Cal.App.5th at pp. 902-904.) But that is not what Plaintiff is alleging here. Rather, liberally construing the complaint, and drawing all reasonable inferences in favor of Plaintiff, Plaintiff sufficiently alleges not a direct transaction with Defendant but an indirect transaction, in which Defendant manufactured or distributed the vehicle, with the understanding and reasonable expectation that its vehicles (including the Vehicle) would be sold to consumers (including Plaintiff) through Defendant’s authorized dealers. (See, e.g., FAC, ¶¶ 4-5, 9-12.)

Accordingly, the requirement of a relationship giving rise to a duty to disclose is, at least as a matter of pleading, satisfied here.

The cause of action is not uncertain.

The demurrer to the Sixth Cause of Action is overruled.

The demurrer is overruled.

Motion
to Strike

Defendants
move to strike the reference to punitive damages in the prayer for relief.

To recover
punitive damages in a tort action, Civil Code section 3294 requires a plaintiff to prove by clear and convincing evidence “that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294, subd. (a); see also College Hosp., Inc. v. Super. Ct.

(1994) 8 Cal.4th 704, 721; *Smith v. Super. Ct.* (1992) 10 Cal.App.4th 1033, 1042.)

“Malice” is

defined in section 3294, subdivision (c)(1), as “conduct which is intended by the defendant to cause injury” or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.”

“Oppression” is

defined in section 3294, subdivision (c)(2), as “despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of that person’s rights.”

“Fraud” is defined

in section 3294, subdivision (c)(3), as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.”

The term

“despicable conduct,” as used in subdivisions (c)(1) and (c)(2), has been defined in the case law as actions that are “base,” “vile,” or “contemptible.” (See, e.g., *College Hospital*, *supra*, 8 Cal.4th at p. 725; *Shade Foods, Inc. v. Innovative Products Sales & Marketing, Inc.* (2000) 78 Cal. App. 4th 847, 891; see also CACI 3940 [“Despicable conduct is conduct that is so vile, base, or contemptible that it would be looked down on and despised by reasonable people.”].)

A plaintiff

seeking punitive damages must include in the complaint “specific factual allegations showing that defendant’s conduct was oppressive, fraudulent, or malicious.” (*Today’s IV, Inc. v. Los Angeles County Metropolitan Transit Authority* (2022) 83 Cal.App.5th 1137, 1193; see also *Anschutz Entertainment Group, Inc. v. Snepp* (2009) 171 Cal.App.4th 598, 643; *Smith*, *supra*, 10 Cal.App.4th at pp. 1041-1042; 1 Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* (2025), ¶ 6:158.). “Punitive damages may not be pleaded generally.” (*Today’s IV, Inc.*, *supra*, 83 Cal.App.5th at p. 1193; see also *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1055–56.)

Pleading

negligence, gross negligence, or even recklessness is not sufficient. (Dawes v. Super. Ct. (1980) 111 Cal. App. 3d 82, 87.) Rather, a plaintiff must allege facts demonstrating that the defendant intended to cause harm to plaintiff or “acted in such an outrageous and reprehensible manner that the jury could infer that [the defendant] knowingly disregarded the substantial certainty of injury to others.” (Id. at p. 90; see also, e.g., American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton (2002) 96 Cal.App.4th 1017.)

Here, as set forth

above, Plaintiff sufficiently alleges fraudulent concealment. Those allegations are also sufficient to support Plaintiff’s request to recover punitive damages.

The motion to
strike is denied.

Conclusion

The

Court OVERRULES the demurrer of Defendants FCA US, LLC and Imperial Valley Chrysler Dodge Jeep Ram to the First Amended Complaint.

The Court DENIES Defendants’ motion to strike.

Defendants are to file an answer or other responsive pleading to the FAC by no later than October 2, 2026.

Plaintiff is ordered to give notice.